



Copyright (Amendment) Act 1983

1983 CHAPTER 42

An Act to amend section 21 of the Copyright Act 1956 so as to provide new penalties for offences relating to infringing copies of sound recordings and cinematograph films; and to provide for the issue and execution of search warrants in relation to such offences.

[13th May 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section 21 of the Copyright Act 1956 (offences relating to infringing copies of works in which copyright subsists) shall have effect subject to the following amendments. Amendments of section 21 of Copyright Act 1956.

(2) In subsection (7) (penalties for offences under subsections (1) and (2) and subsection (4A) (inserted by section 1 of the Copyright Act 1956 (Amendment) Act 1982)) for the words "subsection (2) or subsection (4A) of this section" there shall be substituted the words "or subsection (2) of this section, other than an offence for which a penalty is provided by subsection (7A) or (7B) of this section,". 1956 c. 74.
1982 c. 35.

(3) The following subsections shall be inserted after subsection (7)—

"(7A) A person guilty of an offence under subsection (1)(b) or (c) or (4A) of this section relating to an infringing copy of a sound recording or cinematograph film shall be

liable on summary conviction to a fine not exceeding level 5 on the standard scale or imprisonment for a term not exceeding two months or to both.

(7B) A person guilty of an offence under subsection (1)(a) or (d) or (2) of this section relating to an infringing copy of a sound recording or cinematograph film shall be liable—

(a) on summary conviction, to a fine not exceeding the statutory maximum;

(b) on conviction on indictment, to a fine or to imprisonment for a term not exceeding two years or to both.

(7C) In subsection (7A) of this section “the standard scale” has the meaning given by section 75 of the Criminal Justice Act 1982 and for the purposes of that subsection—

(a) section 37 of that Act; and

(b) an order under section 143 of the Magistrates’ Courts Act 1980 which alters the sums specified in subsection (2) of the said section 37,

shall extend to Northern Ireland and the said section 75 shall have effect as if after the words “England and Wales” there were inserted the words “or Northern Ireland”.

(7D) In subsection (7B) of this section “statutory maximum” has the meaning given by section 74 of the Criminal Justice Act 1982 and for the purposes of that subsection—

(a) section 32 of the Magistrates’ Courts Act 1980; and

(b) an order made under section 143 of that Act which alters the sum specified in the definition of “the prescribed sum” in subsection (9) of the said section 32,

shall extend to Northern Ireland and subsection (1) of the said section 74 shall have effect as if after the words “England and Wales” there were inserted the words “or Northern Ireland”.

Search
warrants etc.
1956 c. 74.

2. The following sections shall be inserted in the Copyright Act 1956 after section 21—

“ Search
warrants.

21A.—(1) Where, on information on oath given by a constable, a justice of the peace is satisfied that there are reasonable grounds for believing—

(a) that an offence under subsection (1)(a) or (d) or (2) of section 21 of this Act relating to an infringing copy of a sound recording or a cinematograph film has been or is about to be committed in any premises, and

(b) that evidence that the offence has been or is about to be committed is in those premises, he may issue a warrant authorising a constable to enter and search the premises, using such reasonable force as is necessary.

(2) A warrant under this section may authorise persons to accompany any constable who is executing it and must be executed within twenty-eight days from the date of its issue.

(3) In executing a warrant issued under this section a constable may seize any article if he reasonably believes that it is evidence that an offence under subsection (1), (2) or (4A) of section 21 of this Act relating to an infringing copy of a sound recording or a cinematograph film has been or is about to be committed.

(4) In this section 'premises' includes land, buildings, moveable structures, vehicles, vessels, aircraft and hovercraft.

(5) This section shall have effect in Northern Ireland as if in subsection (1)—

(a) for the reference to an information there were substituted a reference to a complaint, and

(b) for the reference to a justice of the peace there were substituted a reference to a resident magistrate.

(6) This section shall not extend to Scotland.

Persons
accompany-
ing constable
under search
warrant or
order of
court in
Scotland.

21B.—(1) Where in Scotland an application is made for a warrant or order of court to authorise a constable to enter and search any premises where there are reasonable grounds for believing that an offence under subsection (1)(a) or (d) or (2) of section 21 of this Act relating to an infringing copy of a sound recording or a cinematograph film has been or is about to be committed, the court may in any such warrant or order of court authorise any person named in the warrant or order to accompany any constable who is executing the warrant or order.

(2) In this section 'premises' includes land, buildings, moveable structures, vehicles, vessels, aircraft and hovercraft.

(3) This section applies to Scotland only. "

Short title,
commence-
ment etc.

3.—(1) This Act may be cited as the Copyright (Amendment) Act 1983.

(2) This Act shall come into force at the end of the period of two months beginning with the date on which it is passed.

(3) Section 1 above shall not apply in relation to offences committed before this Act comes into force.

(4) This Act extends to Northern Ireland.